

The Cold Storage Order, 1980

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Union of India - Act

The Cold Storage Order, 1980

UNION OF INDIA

India

The Cold Storage Order, 1980

Rule THE-COLD-STORAGE-ORDER-1980 of 1980

Published on 20 September 1980

Commenced on 20 September 1980

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The Cold Storage Order, 1980

Published vide Notification Gazette of India, Part 2, Section 3(2), dated 20th September, 1980 (w.e.f. 20th September, 1980), now rescinded by S.O. 414(E), dated 27th May, 1997 and published only for the readers knowledge.

S.O. 2453, dated 1st September, 1980. - In exercise of the powers conferred by Section 3 of the Essential Commodities Act, 1955, (10 of 1955), the Central Government hereby makes the following Order, namely :

1.

Short title, extent and commencement.

(1)

This Order may be called the Cold Storage Order, 1980.

(2)

[It extends to the whole of India except the states of West Bengal, Uttar Pradesh, Punjab and Haryana.]

[Substituted S.O. 3001, dated 31st August, 1984 (w.e.f. 22nd September, 1984).]

(3)

It shall come into force on the date of its publication in the Official Gazette.

2.

Definitions.

- In this Order, unless the context otherwise requires ;

(a)

"cold storage" means any chamber or chambers insulated and mechanically cooled by refrigeration machinery and used for storing foodstuffs but does not include refrigerated cabinets or coolers having capacity of less than 25 cubic metres;

(b)

"cold storage receipt" means a receipt issued by a licensee in token of having received foodstuffs from a hirer for storage in a cold storage ;

(c)

"foodstuffs" includes, -

(i)

fruits, whether fresh, dried, dehydrated or preserved;

(ii)

vegetables including seed potatoes, whether fresh, dried, dehydrated or preserved;

(iii)

meat, whether fresh, frozen, dried or preserved;

(iv)

fish, whether fresh, frozen or dried;

(v)

eggs, whether shelled or unshelled;

(vi)

milk and milk products;

(vii)

species and condiments ; and

(viii)

any other food or food products which the Central Government may, by notified order, specify from time to time.

(d)

"form" means a form appended to this Order;

(e)

"hirer" means any person who hires on payment, space in a Cold Storage for storing foodstuffs;

(f)

"licence" means granted under this Order ;

(g)

"licensee" means a person holding a licence;

(h)

"licensing officer" means the Agriculture Marketing Adviser to the Government of India and includes any other officer of the Central Government not below the rank of the [Senior Marketing Officer in the Directorate of Marketing and Inspection]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983), for the words 'Deputy Agricultural Marketing Adviser, Government of India'.]

or the officer of the State Government not below the rank of the Deputy Secretary to Government, empowered by him, as notified from time to time, to exercise all or any of his powers or to discharge all or any of his functions under this Order ;

(i)

"notified order" means an Order notified in the Official Gazette;

(j)

"schedule" means the Schedule appended to this Order.

3.

[Prohibition of construction of new cold storage or expansion of existing cold storage without prior permission]

[Clauses 3 to 8 Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

. - No person shall construct a cold storage or expand the licensed capacity of any existing cold storage for storing foodstuff without prior permission of the Licensing Officer.

3A.

Application for permission to construct or expand a cold storage.

(1)

Any person desiring to obtain permission to construct a cold storage or expand an existing cold storage shall make an application to the Licensing Officer in Form "B" (in duplicate) accompanied with blue prints and other documents mentioned therein.

(2)

Every such application shall be accompanied with a fee of rupees twenty-five.

(3)

Where the applicant proposes to construct more than one cold storage or to expand more than one cold storage he shall obtain a separate permission for each such proposal by applying separately for each such cold storage.

4.

Factors to be considered in granting or refusing permission for construction of proposed cold storage.

- In granting or refusing permission for construction of proposed cold storage the Licensing Officer shall regard to the following factors, namely :

(i)

the number of the cold storage already operating in the area in which the cold storage is proposed to be constructed or expanded and the availability of foodstuffs for storage in such cold storages ;

(ii)

whether the design of the cold storage given in blueprints is complete and in order as per specifications given in the Schedule and Part C of Form B.

4A.

Grant of permission. - (1) On receipt of an application under Clause 3-A the Licensing Officer may, if he is satisfied having regard to the factors specified in Clause 4 that there is no objection to grant permission to the applicant, grant the applicant permission in Form P for construction of cold storage.

(2)

Where having regard to the factors specified in Clause 4, the Licensing Officer is of the opinion that the applicant should not be granted permission, he may, after giving the applicant an opportunity of being heard, refuse to grant the permission, recording in writing the reasons for such refusal and furnish a copy thereof to the applicant, and

(3)

Where the applicant is refused permission, the application fee paid by the applicant with his application shall not be refunded to him.

5.

Prohibition of operation of a cold storage or expanded cold storage without license.

- No person shall operate a cold storage run by an establishment, if he is to accept for storage in any cold storage any foodstuff, except under and in accordance with the terms and conditions of a licence issued in that behalf:

Provided that the Licensing Officer may, on an application made in this behalf in Form "A" exempt a cold storage run by an establishment, if he is satisfied, after making such enquiries as he may consider necessary, that the cold storage is not intended for commercial use by the said establishment.

5A.

Application for licence to operate a cold storage or expanded cold storage. - (1) Any person desiring to obtain a licence for operating a cold storage or expanded cold storage shall make an application to the Licensing Officer in Form "C" (in duplicate) accompanied with the documents mentioned therein.

(2)

Every such application shall be accompanied with fees specified in column 7.

(3)

Where the applicant proposes to operate more than one cold storage or more than one expanded cold storage he shall obtain a separate licence for each such cold storage.

6.

Factors to be considered in granting or refusing a licence for operation of the proposed cold storage.

- In granting or refusing a licence, the Licensing Officer shall have regard to the following factors :

(i)

whether the refrigeration, electrical, insulation, sanitary and safety conditions of the cold storage are as per specification given in the Schedule;

(ii)

suitability of qualification/experience of the staff employed for manning the plant, and

(iii)

any other matter which the Licensing Officer may consider necessary for the purpose.

6A.

Grant of licence. - (1) On receipt of an application under Clause 5-A, the Licensing Officer may, if he is satisfied, having regard to the factors specified in Clause 6 that there is no objection to grant a licence to the applicant, grant the applicant a licence in Form "D" for operation of the proposed cold storage;

(2)

Where having regard to the factors specified in Clause 6, the Licensing Officer is of the opinion that the applicant should not be granted the licence for operation of the proposed cold storage, he may after giving applicant an opportunity of being heard, refuse to grant the licence recording in writing reasons for such refusal and furnish a copy thereof to the applicant.

(3)

Where the applicant is refused a licence, the licence fee paid by the applicant with his application shall be refunded to him.

7.

Licence fee shall be as follows.

- Renewal fee for one year or part thereof:

Licence Fee/

(a)

Cold storage with a storage capacity exceeding 10,000 cubic metres

[Rs. 5000.00]

[Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

(b)

Cold storage with a storage capacity exceeding 2500 cubic metres but not exceeding 10,000 cubic metres

[Rs. 2500.00]

[Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

(c)

Cold storage with a storage capacity of not less than 25 cubic metres but not exceeding 2500 cubic metres

[Rs. 1000.00]

[Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

8.

Relaxation of conditions of licence.

- Every licence granted under Clause 6-A shall be subject to the terms and conditions specified in the Schedule :

Provided that, in the case of a cold storage already in existence before the commencement of this Order, the Licensing Officer may [for reasons to be recorded in writing]

[Inserted by S.O. 3001, dated 31st August, 1984.]

relax any condition if he is satisfied that the compliance with such a condition is not practicable.]

9.

Cancellation of licence.

- The Licensing Officer may cancel any licence if he is satisfied that the licence has, -

(a)

parted in whole or in part, with his control over the cold storage, or

(b)

ceased to run his cold storage, or

(c)

levied any charges in excess of the charges permitted under Clause 20, or

(d)

contravened or failed to comply with any of the terms and conditions specified in the schedule or any directions which may be issued by the Licensing Officer for the proper implementation of this order :

Provided that, before cancelling any licence, the Licensing Officer shall give ten clear day's notice to the licensee stating the grounds on which it is proposed to cancel the licence and shall give the licensee an opportunity to show cause for not cancelling the licence :

Provided further that where immediate action is required, in the public interest the Licensing Officer may, for reasons to be recorded in writing without giving the licensee an opportunity to show cause [suspend the licence forthwith pending an inquiry into reasons for the proposed cancellation in the manner laid down in the first proviso of this order.]

[Substituted by S.O. 3001, dated 31st August, 1984, for the words 'cancel the licence'.]

10.

Licensee not entitled to compensation or refund of licence fee.

- Where any licence is cancelled the licensee shall not be entitled to any compensation or refund of fee paid by him for such licence.

11.

Period of validity of licence.

- Every licence shall, unless cancelled earlier, expire on the 31st day of December of the [fifth year from the year]

[Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991), for the word 'year'.]

in which the licence is granted.

12.

[Renewal of licence]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

. - (1) Every licensee desiring to get his licence renewed shall on or before the 31st day of October make an application in [Form 'E' (in duplicate) to the Licensing Officer accompanied with the renewal fees specified in Clause 7. The Form 'H' duly filled in by licensee shall be submitted on yearly basis to the Licensing Officer before the 31st day of October every year.]

[The certain words, letters, brackets and figures, Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

Where a licensee fails to make an application within the date aforesaid he may make an application with the renewal fee at any time before the expiry of the licence on payment of a penalty calculated at rupees one hundred for the delay of every month or part thereof.

(2)

On receipt of an application for the renewal of licence the Licensing Officer may either renew the licence or refuse to renew the same. Where renewal is refused the licensee shall be given an opportunity of being heard and the reasons for such refusal be recorded in writing and a copy thereof shall be furnished to the applicant and the renewal fee received from the applicant shall be refused to him.

(3)

Where the licensee fails to apply for renewal before the date specified in the sub-clause (1) it will not be lawful for the licensee after the date of expiry of his licence to run his cold storage:

Provided that the Licensing Officer may, on receipt of an application and if he is satisfied with the explanation for the delay given by the licensee renew the licence after charging the penalty at the rate of Rs. 100 per month or part thereof :

Provided further that the Licensing Officer may, for any procedural delay beyond the control of the licensee or any other sufficient reasons to be recorded in writing, waive off the whole or part of the penalty.

13.

Issue of duplicate licence.

- Where a licence is lost, destroyed, torn, defaced or mutilated, the licensee may apply for a duplicate copy of the licence. Every such application shall be accompanied with a fee of rupees ten. On receipt of an application the Licensing Officer shall grant a duplicate copy of the licence to the licensee.

14.

Regulation and transfer of licence.

- (i) A licence granted under this Order shall not be transferred to any other person without the prior approval of the Licensing Officer.

(ii)

Where a licensee sells or otherwise transfers a cold storage to another person or persons or suspends operation of the cold storage for a period exceeding six months the licensee shall surrender the licence to the Licensing Officer within one month of such sale or transfer or suspension.

(iii)

Any change in partnership shall be notified to the Licensing Officer within one month of such a change.

(iv)

The purchaser or the transferee, as the case may be, shall apply to the Licensing Officer for the grant of new licence in accordance with this Order.

(v)

In the event of any change in the name, style or location of the cold storage the licensee shall forthwith intimate the change to the Licensing Officer and within one month from the date of intimation forward his licence to the licensing Officer along with the necessary documents for effecting the necessary change.

15.

Contract of agreement with hirer.

- The licensee shall not enter into a contract or agreement with any hirer in contravention of any of the provision of this Order.

16.

Overloading.

- No licensee shall load the cold storage beyond the licensed capacity.

17.

Provisions regarding storage of food-stuffs.

- (i) No licensee shall refuse to accept for storage in the cold storage any food-stuffs tendered by any person if such person offers to pay the required cold storage charges and if the accommodation for storage of such foodstuffs in the cold storage is available :

Provided that, if the foodstuffs, tendered for storage are likely to cause damage to any other food-stuffs, stored in the cold storage or if for the storage of the food-stuffs so tendered, maintenance of different ranges of temperature than are normally required for the foodstuffs stored in bulk is required then the licensee may refuse to accept for storage, the foodstuffs so tendered :

Provided further that, if the Licensing Officer is satisfied that storage of any particular category of foodstuff is not in the public interest, he may by a public notice prohibit such storage and thereupon the licensee shall refuse to store food-stuff.

(ii)

Where any hirer demands delivery of the whole or any part of his consignment stored in the licensee's cold storage, the licensee shall on payment of the charges fixed under Clause 20 within twenty four hours of such demand, deliver the whole or, as the case may be, the part of the consignment to the hirer.

(iii)

Consignments of foodstuffs stored by each hirer or covered by each storage receipt shall be stored by the licensee separately so as to ensure their easy identification and easy delivery to the hirer concerned.

18.

Cold storage receipts - Defined in 2 (b).

- (i) For the food-stuff stored in a cold storage by each hirer, the licensee shall issue a cold storage receipt in Form "F";

(ii)

The receipt shall, unless it is otherwise specified there on the transferable by endorsement and delivery and shall entitled the holder in due course to receive the goods specified in it as if he were the original hirer; and

(iii)

If a cold storage receipt is lost, destroyed, torn, defaced or otherwise becomes illegible, the licensee shall, on an application made by the hirer issue a duplicate receipt.

19.

Power to requisition the storage.

- (i) The Licensing Officer may, in the public interest by order in writing served on any licensee requisition the whole of a part of the space in the licensee's cold storage for the period specified in the order and on payment of charges fixed under Clause 20 of the Order.

(ii)

The space so requisitioned may be allotted by the Licensing Officer for storing the foodstuffs to one or more persons specified in the order.

20.

Fixation of charges for storage.

- Keeping in view the cost of the machinery, depreciation electric charges, etc., [the Licensing Officer]

[The words 'the Licensing Officer shall,' (Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

may, by order in the official Gazette, from time to time, fix the maximum charges which a licensee may charge for storing [any food stuff in cold storage or for any other service connect therewith.

Provided that the Licensing Officer may, if he is satisfied that certain categories of cold storage need exemption from fixation of maximum charges exempt such cold storages by notification in the official Gazette]

[The certain words, Substituted by S.O. 3100, dated 27th November, 1991 (w.e.f. 12th December, 1991).]

21.

Inspection facilities, etc.

- (i) The licensee shall keep his licence in safe custody in cold storage premises and produce it on demand to the [Licensing Officer or any other officer of the Government of India or the State Government authorised by him in this behalf]

[Substituted by S.O. 2964, dated 27th June, 1983 for the words 'Licensing Officer' (w.e.f. 23rd July, 1983).]

(ii)

Every licensee shall provide all facilities and assistance to the [Licensing Officer or any other officer of the Government of India or the State Government authorised by him in this behalf]

[Substituted by S.O. 2964, dated 27th June, 1983 for the words 'Licensing Officer' (w.e.f. 23rd July, 1983).]

for inspecting the cold storage premises, machinery, equipment foodstuffs, stored therein, books, records and accounts at any time.

22.

[Maintenance of records and submission of returns. - Every licensee shall maintain accounts, books and records relating to storage of foodstuff at the licensed premises in Forms GI to GVI and submit to the Licensing Officer, returns and statements in the Forms GI to GVI on demand. The licensee shall also maintain the cash book and ledger and produce them to the Licensing Officer on specific demand in writing.]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

23.

Power to call for information, etc.

- (i) The [Licensing Officer or any other officer of the Government of India or the State Government authorised by him in this behalf]

[Substituted by S.O. 2964, dated 27th June, 1983, for the words 'Licensing Officer' (w.e.f. 23rd June, 1983).]

may with a view to securing compliance with this Order, -

(a)

require any licensee to give any information in his possession with respect to the foodstuffs stored by him in cold storage ;

(b)

enter, inspect and search any premises where the cold storage is installed to run at any time with a view to satisfy himself that the requirement of this Order are being complied with;

(c)

Prohibit by an order in writing further storage or disposal of any foodstuffs in respect of which he has reason to believe that any contravention of this Order has taken place;

(d)

prohibit a licensee by an order in writing from appointing a person to act as an operator if he has reason to believe that the person has not got the requisite qualification or knowledge or experience of the job.

(ii)

Every licensee shall be bound to furnish such information as may be required by the [Licensing Officer or any other officer of the Government of India or the State Government authorised by him in this behalf]

[Substituted by S.O. 2964, dated 27th June, 1983, for the words 'Licensing Officer' (w.e.f. 23rd June, 1983).]

and afford all necessary facilities to him for the purpose of exercising his powers under paragraph (b) of sub-clause (1).

(iii)

Subject to the provision of this clause the provisions of the Code of Criminal Procedure, 1973 (2 of 1974), relating to search, so far as may be, apply to searches under this clause.

24.

[Appeal. - Any person aggrieved by the order of Licensing Officer may within 30 days of the receipt of a copy of the order by him, prefer an appeal to the Central Government. The Central Government may after giving the applicant an opportunity of being heard, confirm, reverse or modify such order.]

[Substituted by S.O. 475, dated 10th January, 1985 (w.e.f. 2nd February, 1985).]

25.

Delegation.

- The Central Government, may by a notified order direct that such of the powers and functions of the Licensing Officer as may be specified in the Order, may be exercised or, as the case may be, discharged by any State Government or such officer or authority subordinate thereto as may be specified in the order within the territorial limits of that State.

26.

Repeal and Saving.

- The Cold Storage Order, 1964, is hereby repealed, except in respect of things done or omitted to be done there under before such repeal.

Schedule

(See Clause 8)

Part I ? Sanitary requirements :

1. The premises where the cold storage is installed shall be clean. Inside the cold storage electric lights shall be provided at the rate of 1 watt per 4645 sq. cm. The disinfecting or deodorising of the cold storage shall, however, be carried out as and when required.

2. The licensee shall not store any product which may be repugnant or alien to the smell of the foodstuffs stored in the cold storage. Products having repugnant smell shall, however, be stored in separate chambers of the cold storage.

3. All yards, outhouses, stores and all approaches of the premises where the cold storage is installed shall be kept clean and sanitary.

4. No person suffering from any infectious or contagious disease shall be allowed to work in the cold storage. Arrangements shall be made for examination of the employees other than daily paid labourers working in the cold storage once a year to check that they are free from any infectious contagious or other diseases.

5. The employees working inside the cold storage operating above freezing point shall be adequately provided with proper clothes to protect them from cold. The employees working in a cold storage which operates below freezing point shall also be provided with boots.

6. Adequate, toilet facilities shall be provided separately for males and females within the premises.

7. All steps stairs and gangways shall be of sound construction and properly maintained and provided with hand rails to

ensure safety.

Part II ? Requirements as to operation :

1. The doors of the cold storage shall be provided with adequate insulation and shall be kept reasonably air-tight. The design of the doors shall be such that a person shall be able to open it from inside as well as outside.
2. Whether racks are provided they shall be so constructed that loading and unloading operations shall be carried out without endangering the lives of the employees working in the cold storage.
3. For the distribution and circulation of air and for actual operation of loading and unloading, the following directions shall be adhered to namely :-

(a)

The passage between the rows of the racks shall not be less than 0.76 metres.

(b)

The racks shall be kept away at least 20 cms. from the walls and floor.

(c)

A gap of at least 30 cm. shall be maintained between the ceiling and the top level of the load in the top most shelf of every racks.

(d)

A gap of at least 7.5 cm, shall be maintained on every shelf of a rack between the load on the shelf and the succeeding shelf.

4. The diffusers or direct expansion pipes for conveying the refrigerant shall be so arranged in the cold storage so as to maintain proper temperature with maximum allowable variation of $\pm 1^{\circ}\text{C}$ and percentage of relative humidity with an allowable variation of 5 per cent in every location of the cold storage where foodstuffs are stored.
5. The cold storage shall be provided with thermometers reading dry bulb and wet bulb temperatures. The number and location of thermometers shall be dependent on the size and capacity of the cold storage and shall be as instructed by the Licensing Officer or the Officer authorised by him in this behalf at the time of the first or Subsequent inspection.
6. All moving parts of prime movers and fly wheels connected to the prime movers shall be provided with proper belt guards.
7. The suction pipe line of the compressor shall be properly insulated.
8. An alarm bell with switch inside each storage chamber shall be provided for use in case of an emergency.
9. "First Aid Box" shall be maintained in the machine room.
10. Attached to cold storage chambers, an ante-chamber or air-curtain shall be provided.
11. The receiver or condenser of the refrigeration system shall be provide with a pressure gauge with suitable range.
12. A cold storage shall satisfy safety code for mechanical refrigeration as specified in Annexure I to this schedule.

Part III ? Maintenance of log-book and statement of advance booking :

1. Every licensee shall maintain a "Log Book" in the form set out in the Annexure II to this Order for the maintenance of temperature and relative humidity as well as the pressure reading of the compressor on four hourly basis all throughout night and day during the operation of the cold storage unless automatic recording instruments are installed and shall be signed by the Licensee or a responsible person duly authorised by him. The Licensing Officer or any person duly authorised by him in this behalf shall sign the Log Book at every inspection after personal verification of the record.
2. Any stoppage of function of the cold storage continuously for more than 24 hours shall be reported immediately to the Licensing Officer by telegram and confirmed by letter by the licensee. The reasons for such break down shall be recorded in the Log Book and reported to the Licensing Officer.
3. Every licensee shall maintain statement of advance booking and shall furnish this statement to inspectorate shall as and when required by him.

Annexure I

(See Clause 12 of Schedule)

Indian Standard Safety Code For Mechanical Refrigeration

(Revised)

1. Scope

1.1

This code covers safety features in the design, construction, installation operation and inspection of mechanical refrigeration system of vapour compression type including working conditions in the plant room which are considered

reasonably necessary to safeguard life, health and property in the cold storage.

2. Terminology.

2.0

For the purpose of this code, the following definitions shall apply :

2.1

Compressor. - The equipment in which refrigerant in a refrigerating machine is compressed to increase its pressure before liquefaction.

2.2

Condenser - A part of the refrigerating system where high pressure refrigerant gas is condensed to high pressure liquid.

2.3

Condensing unit. - A combination of equipment consisting mainly of compressors, condensers and liquid receivers (when required) for converting low pressure gas to high pressured liquid.

2.4

Evaporator. - A part of the refrigerating system where liquid refrigerant is evaporated to produce cooling.

2.5

Expansion Valve. - A valve which makes the liquid refrigerant to expand from a high pressure to a low pressure and controls the flow of the refrigerant.

2.6

Fusible Plug. - A plug made of special fusible alloy which fuses at a predetermined temperature and relieves pressure in the refrigerating system.

2.7

High Pressure Switch. - An automatic protective device against excessive pressure on the high side. It automatically stops a compressor or a condensing unit when the pressure on the high side exceeds a predetermined limit.

2.8

Low Pressure Switch. - An automatic protective device against excessively low pressure on the low side. It automatically stops a compressor or a condensing unit when the pressure on the side falls below a predetermined limit.

2.9

Plant Room. - Room in which a refrigerating plant other than domestic refrigerating appliances such as refrigerators, portable air conditioners, etc. (which are installed inside the living room) is installed and operated.

2.10

Pressure Relief Device. - A pressure actuated valve or device which automatically relieves the pressure in excess of its setting.

2.11

Pressure Vessel. - It is a receiver containing refrigerants under pressure.

2.12

Receiver - A vessel forming a part of refrigerating system acting as a receptacle for liquid refrigerant.

2.13

Refrigerant. - A chemical agent used to produce cooling, by expansion from high pressure liquid to low pressure gas in a refrigerating system.

2.14

Refrigerant container - A vessel for storage of liquid refrigerant.

2.15

Refrigerating system. - An equipment consisting of condensing unit and evaporator in which refrigerant is circulated to extract and transfer heat.

3. Installation Requirements:

3.1

Plants Room.

3.1.1

. Doors, partitions and openings. - The plant room of each refrigerating system shall be provided with a door (s) and shall have no partition or openings so as to avoid escape of refrigerants to other parts of the building.

3.1.2

. No plant room door shall have locking devices from inside. However, facilities for bolting from inside may be provided.

3.1.3

Adequate ventilation shall be provided for each plant room. The ventilation required shall generally be in accordance with Table-1. To achieve the required ventilation, windows or doors opening to outside air or power driven exhaust fans may be provided. The sizes of the windows and doors and air displaying capacity of the exhaust fans shall be in accordance with the requirements given in Table 1. When exhaust fans are used, provisions should be made for inlet of the air to replace the air that is being exhausted by the fan. The area connected to the exhaust fan or fans shall be in accordance with the minimum duct areas as given in Table 1.

3.1.4

. Emergency exist and fire extinguisher - Each plant room shall be provided with emergency exits and fire extinguishers of suitable type (see IS 2190 1962 Code of Practice for Selection, Installation and Maintenance of Portable First Air Fire Appliances).

3.1.5

First-Aid Equipment. - First-aid equipment shall be provided in each plant room in accordance with the requirements laid down in the Factories Act, 1948, and Rules thereunder.

3.1.6

Gas Masks. - One or more gas masks or breathing apparatus of suitable type shall be kept immediately outside the plant room in an accessible portion. Canisters of the gas masks shall be renewed periodically.

3.2

Foundation and supports provided for condensing units or compressor units or other refrigeration equipment shall be Substantially sound and vibration absorbing and of non-combustible construction.

3.2.1

. All moving machinery shall be guarded in accordance with the provisions of the Factories Act, 1948, and the Rules thereunder.

3.3

Adequate clear space for inspection and servicing of condensing units or compressor units shall be provided.

Table 1

Minimum Air Duct Area and Openings

(Clause 3.1.3)

Weight of the refrigerant in the system

Mechanical discharge of air

Duct area

Open window of door area

Kg

m³/min

m²

m²

(1)

(2)

(3)

(4)

10

3.9

0.03

0.44

25

7.1

0.05

0.7.0

50

11.3

0.05
1.0
75
14.8
0.07
1.2
100
18.0
0.07
1.4
125
20.8
0.10
1.6
150
235
0.10
1.7
200
28.5
0.12
2.0
250
33
0.12
2.2
300
37
0.14
2.4
350
41
0.18
2.6
400
45
0.18
2.8
450
49
0.18
3.0
500
53
0.20
3.1
600
59
0.20
3.4
700

66
0.20
3.7
800
72
0.20
4.0
900
78
0.20
4.2
1000
83
0.20
4.4
1250
97
0.28
5.0
1500
109
0.35
5.4
2000
132
0.40
6.3
2500
154
0.45
7.0
3000
173
0.50
7.7
3500
192
0.54
8.3
4000
210
0.58
8.8
4500
227
0.60
9.4
5000
244
0.65
9.9

6000
275
0.70
10.8
7000
305
0.72
11.7
8000
333
0.75
12.5
9000
361
0.78
13.3
10000
387
0.81
14.0
12000
437
0.83
15.3
14000
484
0.84
16.6
16000
529
0.86
17.7
18000
572
0.88
18.8
20000
614
0.90
20.0

Note 1. - Mechanical discharge of air and open area have been derived from the following formula taken from DIN 8975 Refrigeration Plants, Safety Principles for their Construction, Equipment and Erection :

Open Window or door area, $m^2 = 0.14 / G$

Mechanical Discharge of air, $m^3 = 503 - /G^2$

Where

'G' is the charge in Kgs. of the largest closed circuit of refrigerant in the engine room.

Note 2. - Intermediate values may be obtained by calculation.

3.4

Condensing units or compressor units within enclosures shall be readily accessible for inspection and servicing.

3.5

Adequate illumination for inspection and servicing of condensing units or compressor units and other refrigeration

equipment shall be provided.

3.6

Water supply connections shall be made in accordance with the requirements given in IS : 2065-1963 Code of Practice for Water Supply in Building.

3.6.1

. Water used for removing heat from the refrigerating system shall not be discharged into any water supply which is likely to be used for human or animal consumption.

3.7

Electrical wiring and installation of the electrical equipment shall be in accordance with the requirements of the Indian Electricity Act and Rules thereunder and shall also conform to the requirements laid down in IS : 732-1963 Code of Practice for Electrical Wiring Installations (System Voltage Not Exceeding 650 Volts) (Revised). IS : 2274-1963 Code of Practice for Electrical Wiring Installations (System Voltage Exceeding 650 Volts) and IS 302-1963 General Safety Requirement for Light Electrical Appliance as applicable.

3.7.1

. Electrical interlocking of the compressor with condensing water pump and cooling tower fan (where provided) is strongly recommended. The switch of the compressor motor should be interlocked with the pumping set and fan in such a way that the compressor motor will not start until the condensing water pump and fan have started.

3.7.2

. It is recommended that as far as practicable the high pressure switches, low pressure switches, and other electrical control apparatus used in connection with a mechanical refrigeration system be operated on a voltage not exceeding 250.

3.8

No open flame or apparatus to produce open flame or hot surface above 425°C shall be permitted in a plant room having one or more refrigeration machines with a total refrigerant charge exceeding that mentioned in Table 2 for each cubic metre of room volume.

3.9

No open flame shall be applied to refrigerating system or refrigerant vessel when the system or vessel is charged with refrigerant.

3.10

In the case of refrigerating system using inflammable refrigerants, such as methyl chloride, ethane, etc. all electrical installations for refrigerating system shall generally conform to the requirements given.

Table 2

Maximum Permissible Quantities of Inflammable Refrigerants

(Clause 3.8)

Name

Chemical formula

Maximum quantity g/m³

Butane

C₄H₁₀

40

Ethane

C₂H₆

40

Ethyl Chloride

C₂H₅Cl

100

Ethylene

C₂H₄

32

Isobutane

(CH₃)₃CH

40

Methyl

CH₃Cl

160

Methyl Formate

CH₃OOCH₃

110

Propane

C₃H₈

40

IN IS: 1646-1961 Code of Practice for Fire Safety of Buildings (General), Electrical Installations, where applicable, and any other fire safety requirements laid down by the appropriate authority.

3.11

No refrigerating system or piping shall be installed in a passage doorway, below a staircase or in any public place, except when suitably guarded.

3.12

Charging Refrigerant. - While charging a gauge should be provided between the refrigerant container and the machine to know the pressure at which the system is being charged. This pressure should not exceed the discharge pressure at which the compressor has to work with particular type of refrigerant.

3.13

For each installation of refrigerating system the following information mounted on a frame, should be clearly posted in the plant room :

(a)

name and make of the condensing unit;

(b)

model of condensing unit;

(c)

name and full charge of refrigerant;

(d)

full charge of oil;

(e)

quantity of refrigerant and oil charged in the system with date of charging ;

(f)

pressure at which the system is tested after installation; and

(g)

change of refrigerant, if any, with date.

4. Refrigerating System and Equipment:

4.1

Refrigerant piping valves, fittings, their related parts and all material used in the construction and installation of refrigerating system shall be suitable for the refrigerant used. No material which could deteriorate due to chemical action of the refrigerant or the oil or the combination of both and moisture shall be used. Aluminium zinc or magnesium shall not be used in contact with methyl chloride, magnesium alloys shall not be used in contact with chloro-fluoro derivatives of methane and ethane. Copper and copper alloys shall not be used in contact with ammonia.

4.2

All joints shall be readily accessible.

4.3

Joints from refrigerant copper pipe and fitting made with solder or other alloys shall have melting point of :

(a)

not less than 260°C for pipe sizes upto 32 mm; and

(b)

540°C for pipe sizes above 32 mm and for all the sizes on hot gas lines.

4.4

Stop valves shall be installed on all systems other than those using centrifugal compressors containing more than 10 kg. of refrigerant. The location of the stop valves shall be as given in 4.4.1.

4.4.1

. Stop valves shall be provided at the inlet and outlet ends of each of compressor, receiver and evaporator.

4.5

Test Pressures. - All stop valves piping, joints, flanges and fittings shall withstand test pressures as given in Table 3 after completion of installation and before operation.

4.6

All refrigerant piping should be supported by means of hangers, bracket straps, clamps or pedestals in such a manner as to relieve joints of harmful strains and vibrations.

4.7

Colour identification of refrigerant pipe lines shall be in accordance with the colour identification given in IS : 2379-Colour Code for identification of pipe lines.

4.8

Emergency Discharge Line. - Each refrigeration system of ammonia and sulphur dioxide having a charge of 10 kg. or more should be equipped with emergency discharge line. The discharge line should be connected directly in top of the receiver or the condenser receiver in the emergency.

TABLE 3

Minimum Field Refrigerant Leak Test Pressure

(Clauses 4.5 and 5.3)

Name of refrigerant

Chemical formula

Minimum field refrigerant leak test pressure

Kg/CM-2High

GaugeLow

Pressureside

Pressureside

Ammonia

NH₃

20

10.5

[Carbon Dioxide]

CO₂

100

70

Dichlorodifluoromethane

CCl₂F₂

16

10

Dichlorodethlene

C₂H₂CL₂

2

2

Dichloromethane

CH₂CL₂

2

2

(Methylene Chloride)

5

3

Dichloromonofluoromethane

CHCl₂F

3.5

3.5

Ethane

C₂H₆

85

50

[Methyle Chloride]

CH₃Cl

15

8.5

Monochlorodifluoromethane

CHClF₂

20

10.5

[Sulphur Dioxide]

SO₂

12

6

[Trichloromonofluoromethane]

CCl₃F

2

2

Trichlorotrifluoromethane

C₂Cl₃F₃

2

2

Valve should be placed immediately outside the plant and there should be no valve between the emergency valve and the receiver so that in case of an emergency the valve can be operated from outside without entering the plant room. Adequate precautions should be taken to see that the emergency valve is not tampered with by an unauthorised person. The emergency valve should be covered preferably with a glass fronted box. The emergency discharge pipe should be so connected outside the building that it does not affect the surrounding locality.

5. Pressure Devices:

5.1

High Pressure Switch

5.1.1

. All condensing units or compressor units above the size normally used for domestic refrigerators shall be fitted with automatic high pressure switches.

5.1.2

. The high pressure switch shall always be fitted on to the discharge side of the compressor before the discharge shut-off valve.

5.1.3

. For condensing units above 7.5 kw the cut-in-cycle of the high pressure switch shall not be automatic, that is after tripping, the compressor motor shall require to be started manually.

5.2

Low Pressure Switch - Low pressure switch should be fitted wherever practicable, to all compressors other than those used for domestic refrigerators when the compressors are used for producing low temperature conditions below 0°C.

5.3

Pressure Relief Device of Fusible Plugs. - These shall be provided on the high side above the refrigerant liquid level on all condensing units. The discharge for the relief valve should be so connected that it should discharge without affecting

the surrounding locality outside the building. Ammonia and sulphur dioxide refrigerants shall be discharged in vessels containing water and brine, respectively. The pressure relief valves shall be set to blow at pressures 75 to 80 per cent. of those specified for minimum field refrigerant leak test-pressures (on the high pressure) given in Table 3.

6. Pressure Vessels :

6.1

All refrigerant containing pressure vessels shall be hydrostatically tested and thoroughly examined periodically as required under the Factories Act, 1948, and the Rules made thereunder.

6.2

All refrigerant containing pressures vessels having a net volume of 0.15m³ or more, and which may be shut-off by valves, shall be equipped with pressure relief devices or fusible plugs.

7. Maintenance :

7.1

Each refrigerating system after installation shall be checked for refrigerant leaks every three months.

7.2

Pressure device, pressure gauges and all other refrigerant controls on both the high side, and low side shall be checked periodically, the time between two such inspections not exceeding six months. Fusible plugs shall be inspected once every three months.

7.3

Moulds, cans, tanks, etc. shall be checked frequently for chemical action and corrosion from hygienic and sanitary point of view.

7.4

Electrical installation shall be checked periodically for insulation leakage, etc. in accordance with the Indian Electricity Act, 1910, and the rules made thereunder and IS : 732-1963 Code of Practice for Electrical Wiring Installations (System Voltage Not Exceeding 650 volts) (Revised) and IS : 2274-1963 Code of Practice for Electrical Wiring Installation (System Voltage Exceeding 650 volts).

7.5

All repairs shall be duly recorded and record of all tests carried out after repairs shall be maintained. The record should be signed by the mechanic and the engineer or office-in-charge.

7.6

Proper precaution shall be taken that no gas other than what is in the system is charged.

7.7

Open flame shall never be applied to the gas cylinder or to the system when it is charged with refrigerant.

7.8

In a plant in which refrigerating system containing more than 25 kg. of refrigerant is installed, a card shall be placed conspicuously near the compressors giving directions for the operation of the refrigerating system including precautions to be taken in the case of a breakdown or leak and instructions for shutting down the refrigerating system in case of emergency.

Annexure II

(See Part III of Schedule)

Cold Storage :

Timing

Compressor No.

Delivery pressure gauge

Crankcase oil pressure

Brine temperature

Cold chambers

Remarks

Volts

Amps

Suction pressure gauge

No. 1

No. 2

DB

WB

DB

WB

12 Midnight 4 A.M. 8 A.M. 12 Noon 4

P.M. 8 P.M.

Engine Room Log

Form A

[See Clause 3(b)]

Application for Seeking Exemption from Grant of Licence under the Cold Storage Order, 1980

1. Name of the Establishment.

1. (a) Name and address of the partners/directors/head of the institution.

2. Nature of business being carried out.

3. Location

4. Number and size of the cold storage chamber (s):

(a)

Date and year of commissioning the cold storage.

(b)

Length in metre.	Breadth in metre.	Height in metre.	Capacity in cubic metres
---------------------	----------------------	---------------------	-----------------------------

(c)

Type and thickness of insulation.

(d)

Particulars of machinery installed.

(e)

Name of the foodstuff (s) being stored.

(f)

Duration for which the foodstuff(s) are normally stored.

(g)

End use of the foodstuff being stored.

5. Period for which exemption is required.

6. Justification for seeking exemption under the Cold Storage Order, 1980.

7. I/We hereby undertake that :

(i)

If given an exemption we shall ensure the storage of foodstuff in a proper hygienic conditions.

(ii)

Premises shall be offered for inspection by the Licensing Officer under Order or any of his authorised representative at any time.

(iii)

If We shall be bound to give any information regarding the foodstuffs stored in the cold storage or any other information as and when asked for by the Licensing Officer under the Cold Storage Order, 1980.

(iv)

We shall store the foodstuff entirely for the end use of the business as detailed in Sl. No.2 above and shall under no circumstances accept any foodstuff for storage from any other person for any consideration or otherwise.

Signature of the applicant

Date :

Form B

[See Clause 4(i)]

Part A ? (To be filled in by the applicant as per instruction enclosed)

Application form for grant of Permission to setup a new Cold Storage/for Expansion of Existing Cold Storage

1. (i) Name and address of the applicant (in capital letters).

(ii)

Names and addresses of the proprietors, partners, directors, etc. (copy of firm's registration/partnership deed to be enclosed).

2. Particulars Of Land -

(i)

Location.

(ii)

Nearest Railway Station.

(iii)

Nearest Highway.

(iv)

Area in square metres.

(v)

Date of purchase (in case it is a purchased land, attested copy of Purchase Deed or other documentary proof to be enclosed).

3. Particulars Of Machinery, Insulation, Etc :

(i)

Details of machinery purchased/to be purchased (a separate list may be attached, if desired.)

(ii)

Source of procurement.

(iii)

Insulation :

Main wall Common wall. Floor. Ceiling.

Material

Thickness in mm.

(iv)

Refrigerant proposed.

4. Capacity Of The Cold Storage :

(i)

Number (s) of proposed cold storage chamber (s).

(ii)

Internal dimensions including height of each chamber.

(iii)

Total storage capacity in cubic metres of all chambers for which application being furnished.

(iv)

Proposed date of starting the construction.

(v)

Set of drawings are attached ? Yes/No.

5. Availability Of The Foodstuffs For The Cold Storage :

(i)

Name of the foodstuff(s) to be stored.

(ii)

Source of procurement.

6. Number of cold storages operating at the place and within the radius of 40 km. from the proposed site of cold store.

7. Justification for setting up of the proposed cold storage/expansion of the existing cold storage.

8. Availability Of Power :

(i)

Electrical load required.

(ii)

Arrangements made for required electrical load, if sanction is obtained, please mention the sanctioned load with its date

of sanction.

9. Availability Of Water :

(i)

Quantity of water required.

(ii)

Arrangements made for water supply.

10. Source Of Finance :

In case financing is done by bank/state financial corporation amount of loan applied for/sanctioned with date of sanction.

11. Economics Of Proposed Storage/expansion Of The Cold Storage :

A. (i) Fixed capital.

(ii)

Cost of land.

(iii)

Cost of building.

(iv)

Cost of machinery.

(v)

Cost of insulation.

(vi)

Cost of rack.

(vii)

Cost of any other matter.

B. Working Capital

Total _____

C. Expenditure :

(i)

Running expenses (charges for electrical power, water, refrigerant gas, lubricant, workshop, repair and maintenance, labour for loading and unloading, grading and packing, etc. transport fees, interest on capital outlay, insurance, depreciation, etc.)

(ii)

Establishment : Staff and office expenses, etc.

(iii)

Over heads.

Total _____

D. Profit and Loss account :

(i)

Receipts.

(ii)

Expenditure.

(iii)

Proposed rental rate.

(iv)

Percentage of profit on the total capital outlay.

Signature(s) of the applicant.

Date.

Enclosures (Tick mark which is enclosed)

1. Partnership Deed (attested copy)/Memorandum and Article of Association.

2. Affidavit in support of proprietorship.

3. Land Purchase Deed (attested copy).

4. Certificate of registration of firm (attested copy).

5. "No Objection Certificate" from local authority/Municipal Corporation.

6. Letter from the Agricultural Officer regarding production.

7. Following drawings :

(i)

Key Plan.

(ii)

Detailed Plan.

(iii)

Site Plan.

(iv)

Sectional Details.

Note. - Strike out whichever is not applicable.

Part B ? (To be filled by the office)

Report of the Regional Office of the Directorate of Marketing and Inspection

Particulars

Whether in order, if not, note the discrepancies

1. Key Plan.

2. Site Plan.

3. Detailed Plan.

4. Sectional Details.

5. (i) Partnership Deed.

(ii) Affidavit (in support of
proprietorship)

(iii) Memorandum & Article of
Association

6. Land Purchase Deed.

7. Certificate of registration.

8. "No Objection Certificate" from the Local
Authority/Municipal Corporation.

9. Letter from the Agricultural Officer regarding production.

10. Whether power load has been approved.

11. Whether project feasible.

12. Recommendation for grant of permission.

13. Form "B"

SignatureDate :

Part C ? Instructions

Filling Application for Grant of Permission for Construction of Cold Storage

Any person desirous of establishing a new cold storage or expansion of existing cold storage under the Cold Storage Order, 1980, shall apply for the grant of permission to the Agricultural Marketing Adviser to the Government of India, Faridabad. Application on the prescribed forms should be submitted in the following manner :

Name of the region

Area of the region

HQ

1

2

3

1. Northern Region

(1) Jammu & Kashmir

New Delhi

(2) Punjab,(3) Haryana

If to be included

(4) Rajasthan(5) Himachal Pradesh(6) Delhi and(7)

Chandigarh

2. Western Region :

(1) Maharashtra(2) Gujarat(3) Madhya Pradesh(4)

Goa, Daman and Diu, and(5) Dadra, Nagar Haveli.

Bombay

3. Eastern Region :

(1) Bihar(2) Orissa(3) Assam(4) Meghalaya(5)

Manipur(6) Tripura(7) Nagaland(8) NEFA; and(9)

Andaman and Nicobar Islands.

Patna

4. Southern Region :

(1) Tamil Nadu(2) Andhra Pradesh(3) Karnataka(4)

Kerala(5) Pondicherry(6) Laccadive, Minicoy and Amindivi

Islands

Madras

2. How To Apply:

Intending parties should, before starting construction of a new cold storage, or expansion of the existing one, apply for permission on the prescribed Form 'B' along with the following enclosures :

1. Attested copy of Land Purchase Deed.

2. Attested copy of Partnership Deed/Affidavit for Proprietorship/Memorandum & Article of Association.

3. Attested copy of Certificate of Registration.

4. A certificate from the District Agriculture Officer regarding the production of potatoes and/or other commodities to be stored in the proposed cold storage. In case, where the proposed cold storage is to be located in terminal market, port cities or in metropolitan cities which are the main consuming city certificate shall not be necessary. In case of Milk Cold Storage or Fish Cold Storage also this certificate is not necessary.

5. Set of drawings.

6. A letter from the State Electricity Board assuring the availability of sufficient electric load, and

7. "No Objection Certificate" from the Municipal Committee/Corporation or other local authority for construction of the cold storage, or alternatively a declaration that the site of the cold storage does not fall within the jurisdiction of any local authority.

8. In addition to the above documents, it is necessary that following documents should also be submitted wherever applicable :

1. Number of cold stores operating within 30 Km. radius.

2. Justification sheet for setting up of a cold storage.

3. Copy of letter from the bank/financial corporation or a letter of intent for financial assistance.

4. List of machinery and insulation.

5. Detailed building estimate from a licensed/registered Engineer/Architect.

Before filling in the form of application and preparing the drawings the following points may be studied completely:

APPLICATION FORM "B"

Land (Column 2 of the application). - An attested copy of Land Purchase Deed should invariably be submitted alongwith the application form. Before purchasing the land following points should be taken into consideration :

(a)

the land should be of clear title and the ownership should in no way be disputed ;

(b)

the land should be on a high level and should be safe from flooding, etc., during the rains ;

(c)

the land should be sufficient for accommodating the proposed chambers, future expansion, drying sheds, general amenities to the workers, etc.; and

(d)

the approach to the proposed cold storage should be independent. Approach road through the fields of other person shall not be approved.

Particulars Of Machinery, Insulation, Etc. - (Column 3 of the applicant). - The entrepreneurs shall submit a comprehensive scheme alongwith the proposed list of machinery from a firm of repute. Any change in the proposed machinery at a later stage should be intimated to the Directorate and permission obtained. Failure to do this is likely to delay the grant of permission.

Insulation. - Any of the following [Standard insulation materials or its equivalent in respect of thermal conductivity and density]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983), for the words 'Standard insulation materials'.]
may be used. The minimum thickness required in case of each is shown against the same :

Wall

Floor

Ceiling

1.

Cork

80mm

50mm

100mm

2.

Fibre Glass

80mm

50mm

100mm

3.

Thermocole

80mm

50mm

100mm

4.

Rice husk

30 cms

30 cms

45 cms

5.

Saw dust

30 cms

30cms

45 cms

In case rice husk/saw dust is employed, water barrier should invariably be used.

For a cold storage storing poultry, fish or milk products the minimum thickness required is as under :

For temp.-10 - F

For temp.-40-F

Walls

Ceiling

Floor

Fibre glass

150mm

200mm

100mm

200mm alround

Thermocole

150mm

200mm

100mm

?do?

Rice husk/saw dust insulation shall not be accepted in a cold storage, which are storing produce below sub-zero temperature.

Cinder insulation shall not be accepted.

Refrigerant. - F-12, F-22 or Ammonia gas may normally be used as refrigerant.

Capacity Of Cold Storage. - (Column 4 of the application). - Internal dimension shown in column 4 should be clear dimensions after insulation. Dimension should be given in metric system.

Drawing - While preparing the drawings following points should be kept in view.

(a)

Key Plans. - Key plan should show the proposed location with respect to important land marks in the vicinity. The process of granting permission would be expedited if the Key Plan is submitted on a village or municipal map but whenever if not possible the Key Plan should invariably be submitted with reference to important highway, important buildings, kilometre stone on the highway, etc., so that the location may be ascertained even by a person who is not familiar with the locality.

(b)

Site Plan. - Site Plan should show the proposed plot of land and names of owners of adjoining plots. Location of chambers, precooling chambers, drying shed, condensers, machine room office and the other utility building like toilets workers residential areas. etc., should be clearly marked. The approach road should be marked clearly. Drying shed should invariably be shown. The minimum area of the drying shed should be at the rate of 2sq.ft. (0.1 sq. meter of storage capacity). The cold storage chambers should be so located that walls do not coincide with the boundary walls of the plot.

(c)

Detailed Plan. - Detailed Plan should show the complete dimensions/details of the building, the material to be used in the construction, details of racking structure, size of horizontal/vertical members of the racking structure/proposed galleries/ passages. Galleries should be so located that every bag can be taken out at a short notice and the inspection of all the bags can be done at frequent intervals. It is desirable that the distance between two galleries should remain between 5 to 6 metres. The minimum width of the galleries as per C.S.O., 1980, is 0.76 metres. Air gap of 20 cms between the walls and the bags and between the floor and the bags should be provided. Air lock should be provided to all the chambers invariably.

(d)

Sectional Detail. - A cross section should be drawn so that the maximum number of details can be shown therein. This should show the internal as well as external height of the chambers foundation details. Normally, more than 6 stages should not be provided in a cold storage.

Availability of foodstuff. - (Column 5 of the application). - A certificate from the District Agricultural Officer may be obtained. This certificate should indicate the area under cultivation and the total yield of potatoes and/or other crops proposed to be stored in the Cold Storage.

Number of cold storage chamber(s). - (Column 6 of the application). - In column 6 a list of cold storage operating within 30 km or around may be enclosed.

Justification for setting of a cold storage. - (Column 7 of the application). - A separate sheet may be attached justifying the creation of additional cold storage with special reference to the availability of foodstuff and the existing cold storages within the area.

Availability of power. - (Column 8 of the application). - Adequate availability of power should be ensured. Assurance letter from the State Electricity Board should be enclosed. In case it is proposed to install stand-by generating sets, the same should also be indicated.

Availability of water. - (Column 9 of the application). - It is desirable that an uninterrupted arrangement of water by a tube-well should be available. It may be ensured that the water is tested for its hardness so as to avoid frequent scaling of the condenser pipes. In case the water is hard, treatment plants may also be provided.

Source of finance. - (Column 10 of the application). - If a loan has been sanctioned, a copy of letter from bank/financial corporation may be enclosed. In case the loan cannot be sanctioned in anticipation of the permission, a letter of intent may be enclosed.

Economics of the proposed cold storage. - (Column 11 of the application.) - The estimates should be carefully assessed. In case of any abnormally high/low costs, the figures will have to be Substantiated with an estimate from any firm of repute/licensed architect.

While calculating the receipts for the storage, the prevailing rates as fixed by the Centre/State Governments may be taken into consideration.

[Form C]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

(See Clause 5-A)

Application for licence under the Cold Storage Order, 1980

1. Names and addresses of the applicant (s)

2. Location of the cold storage Post office

District.

Pin Code

3. Number and size of Cold Storage Chambers, -

(I)

Size of the individual cold storage chamber in metres.

(i)

..... length x breadth x height.

(ii)

(iii)

(II)

Total capacity of all the cold storage chambers.

(a)

combined cubic metre.

(b)

combined metric tonnes of foodstuff.

4. Capacity of refrigeration plant in tons of refrigeration per 24 hours TR

5. List of machinery installed with particulars (attach separate sheet).

6. Total H.P. of the motors/other prime movers (give break up also.)

7. Names of foodstuffs I/we intend to store or accept for storing in cold storage.

8. I/we hereby forward a Bank Draft No dated for a sum of Rs in respect of licence fee due according to the provisions of the Cold Storage Order, 1980 along with Strength and Stability Certificate of the building and allied structures and Case History of the Cold Storage.

9. I/We hereby undertake to comply with all the provisions of the Cold Storage Order, 1980.

Date :

Signature of the applicant.

Enclosures : (i) Licence fees in the form of

(ii)

Strength and Stability Certificate.

(iii)

Case History.

Form D

Government of India

Ministry of Rural Development

Directorate of Marketing and Inspection

(SEAL)

(See Clause 6-A)

Licence under the Cold Storage Order, 1980.

Licence No. CSO

1. Name and address of the licensee

2. Location of the cold storage

3. Other details : Ownership Foodstuff Number of chambers This licence is granted under, and is subjected to the provisions of the Cold Storage Order, 1980 (including the terms and conditions specified in the Schedule to that order), all of which shall be complied with by the license.

Place :

Date :

(Licensing Officer)

Validation and Renewal

Period of Validity

Licence fee paid

Total capacity of the Cold Storage (in cubic meters and in metric tonnes)

Signature of the the Licensing Officer.

12345

Signature of the applicant

Date

Form E

Application for Renewal of Licence under the Cold Storage Order for the year

[See Clause 12(1).]

Name and address of the Cold Storage

Licence number.

Any major change in the machinery should be indicated.

I/We hereby undertake to comply with all the provisions of the Cold Storage Order, 1980.

I/We hereby forward a Bank Draft No dated for a sum of Rs in respect of the renewal fee due according to the provisions of the Cold Storage Order 1980.

Signature of the applicant

Date

[Form F]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

Cold Storage Receipt

[See Clause 18(1)]

Sl. No Dated Name and location of the Cold Storage Cold Storage licence number valid upto

(i)
Received from (name and address of the hirer) foodstuff of the following description :

Name of commodity as declared by the hirer

Number and kind of packages each having standard weight as given overleaf

Weight of the foodstuff if it be stored in loose

Pvt. mark of the hirer on the packages, if any and Remarks

12345

(ii)

(a)

Storage rate Rs per per month/season

(b)

Loading charges Rs.

Unloading charges Rs

(iii)

(a)

Whether insured, if yes, its details

(b)

Insurance charges Rs

(iv)

Particulars regarding transfer by endorsement creating liens, mortgage or other encumbrances on the foodstuff deposited (if negotiable)

(v)

This receipt is issued subject to the provisions of the Cold Storage Order, 1980.

Signature/Thumb impression of the hirer or his agent.

Date

Signature of the licensee or his authorised agent.

Date

The minimum conditions of receipt which are to be printed on the back side of the cold storage receipt.

1. Average standard weight will be considered as under :

(a)

Potato bag

80 Kgs.

(b)

Apple case

16 Kgs.

(c)

Apple half case

8 Kgs.

(d)

Orange case

25 Kgs.

(e)

Any other item

2. Hirers are advised to get their material weighed in case there is variation in standard weight so that measured weight may be specified.

3. Cold storage shall not be responsible for the shrinkage or loss of weight due to natural dehydration or any other cause upto 5 per cent. of the total weight.

4. Cold Storage shall not be responsible for the damage to the material stored caused due to circumstances outside the Management's control. Cold Storage shall be at liberty to dispose of the damaged stock if not withdrawn within seven days of the date of issue of written intimation. This intimation shall be sent under registered cover.

5. In case of monthly storage the minimum storage charges shall be one month. Rent of 30 days shall be charged for the month or part thereof on Subsequent period.

6. The seasonal storages for potato will be up to 31st October, 1980.

7. Delivery of stored material shall be against payment of all dues.

Form G-I

Daily Balance Register

Page

Name of the Cold

Storage Address

Date

Commodity

Last balance brought up

Receipt during the day

Issue during the day

Balance over

Signature of Manager/Proprietor

Date

Form G-II

Loading Register

Page

Name of the Cold Storage

Address

Receipt No.

Apple

[Potato]

[Delete whichever is not applicable.]

[Orange]

[Delete whichever is not applicable.]

[Kirana]

[Delete whichever is not applicable.]

Any other item

Name of the party

Rack No.

Rack No.if shifted

Signature of the Manager/Proprietor

Date

Form G-III

Stock Ledger

Page

Name of the Cold Storage

Name of the Depositors

Date of Receipt/Issue

Quantity

Gate Pass No.

Period for which rent due

Amount due

Remarks

Signature of the Manager/Proprietor

Date

[Form G-IV]

[Substituted by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983)]

Bill for storage charges

(See Clause 22)

Date

Bill No

Name and address of the Cold Storage

Name and address of the hirer

Sl. No.

Challan Number

Particulars of

foodstuff _____

Date of receipt

Date of delivery

Period

Storage

rate

Amount

Commodity

Lot No.

Qty.

Rs.

P.

Rupees

Signature of the Manager/Proprietor

Form G-V

Delivery Challan

(See Clause 22)

Date

Sl. No.....

Name and address of the Cold Storage

Name and address of the hirer

The foodstuff mentioned and described below is hereby released from following receipt numbers for delivery from the cold storage :

Sl. No.

Receipt No. and date

Particulars of foodstuff

Quantity released

1

2

3

4

Signature of the hirer

Quantity still due on Cold Storage receipt

Signature of licensee or his authorised representative.

Form G-VI

Name of the Cold Storage

Address

Gate Pass No.

Date

Issued the following goods to M/s

Particulars

Quantity

Receipt No.

Remarks

Received the above goods in good and satisfactory condition with the copy of this gate pass.

Store Clerk

Date

Signature of Customer

Date

Form H

(See Clause 12(i) of the Cold Storage Order, 1980)

1. Name and Address of the licensee.

2. Location and address of the Cold Storage.

3. C.S.O. Licence No. CSO/ and total capacity of the Cold Storage in Cu. metres

Statement Showing The Quantities Of Food Stored In Cold Storage During Term, 19.

Sl. No.

Name of the food stuff stored.

Quantity of the food stuff stored in metric tonnes.

Temperature & the relative humidity at which
the food-stuff was stored.

Storage charges for the foodstuff stored per
quintal per season.

Electricity charges per unit

Water charges per 1000 gallons

% of the capacity utilised to the total capacity

of the cold storages & reasons of unutilised capacity if any

Remark

Signature of the Manager/Proprietor

Date

[Form I]

[Added by S.O. 2964, dated 27th June, 1983 (w.e.f. 23rd July, 1983).]

Government of India

Ministry of Rural Development

Directorate of Marketing and Inspection

(SEAL)

Permission for constructions of Cold Storage under Cold Storage Order, 1980

(See Clause 4-A)

F.No Dated

Name and address of the party

Location of the Cold Storage

Period of validity

Details of application fees paid

Dimensions & capacity

Number of chambers

Name of foodstuff to be stored and its weight

Ownership

This permission is granted under Cold Storage Order, 1980 for the construction of a cold storage at above site as per details mentioned above and in accordance with the drawing submitted and is subjected to the provisions of that Order (including the terms and conditions specified in the schedule of that Order) all of which shall be complied with.

Conditions :

1. The construction of cold storage should be done strictly as per the approved drawings.
2. Any change in the dimensions, design, foodstuff to be stored and constitution of ownership may be done only with the prior approval of the licensing officer.
3. After completion of construction of the cold storage in all respect, the following enclosed documents may be submitted (in duplicate) to

(i)

Application in Form C.

(ii)

Strength and stability certificate by registered/licensed Architect or Engineer,

(iii)

Case history.

Related AI tags, queries and research notes

Translation